

Intentional Torts (1)

Topics outline

1. Introduction to intentional torts
2. Battery
3. Assault
4. False Imprisonment
5. Defences
6. The tort in *Wilkinson v Downton*
7. The Protection from Harassment Act 1997



1. Introduction to Intentional Torts

Intentional torts

- ❑ Battery: unlawful touching
- ❑ Assault: unlawfully causing another to fear a battery
- ❑ False imprisonment: unlawful restriction of liberty
- ❑ *Wilkinson*: intentional infliction of distress
- ❑ Harassment: a course of conduct which amounts to harassment

Letang v Cooper [1965] 1 QB 232



- ❑ C was run over in a car park while sunbathing.
- ❑ C would have sued in negligence (but the limitation period had expired) so tried battery instead (which has a longer limitation period).
- ❑ “If one man intentionally applies force directly to another, [C] has a cause of action in ... battery, or, if you so please to describe it, in trespass to the person. ... If he does not inflict injury intentionally, but only unintentionally, the plaintiff has no cause of action today in trespass. His only cause of action is in negligence ...” (Denning LJ)

Two distinctions from negligence

1. Intentional torts do not require damage

- Negligence requires proof of damage (recall *Dryden v Johnson*)
- Intentional torts are actionable '*per se*' (which means 'in themselves')
- This reflects the the nature and significance of the right to bodily integrity (see Herring & Wall in additional reading). As Goff LJ put it: "The fundamental principle, plain and incontestable, is that every person's body is inviolate. ... The breadth of the principle reflects the fundamental nature of the interest so protected." (*Collins v Wilcock*)

2. Intentional torts require intention

- D person must voluntarily do the conduct which constitutes the intentional tort
- This does *not* mean D must intend to harm C – it means D must intend the conduct

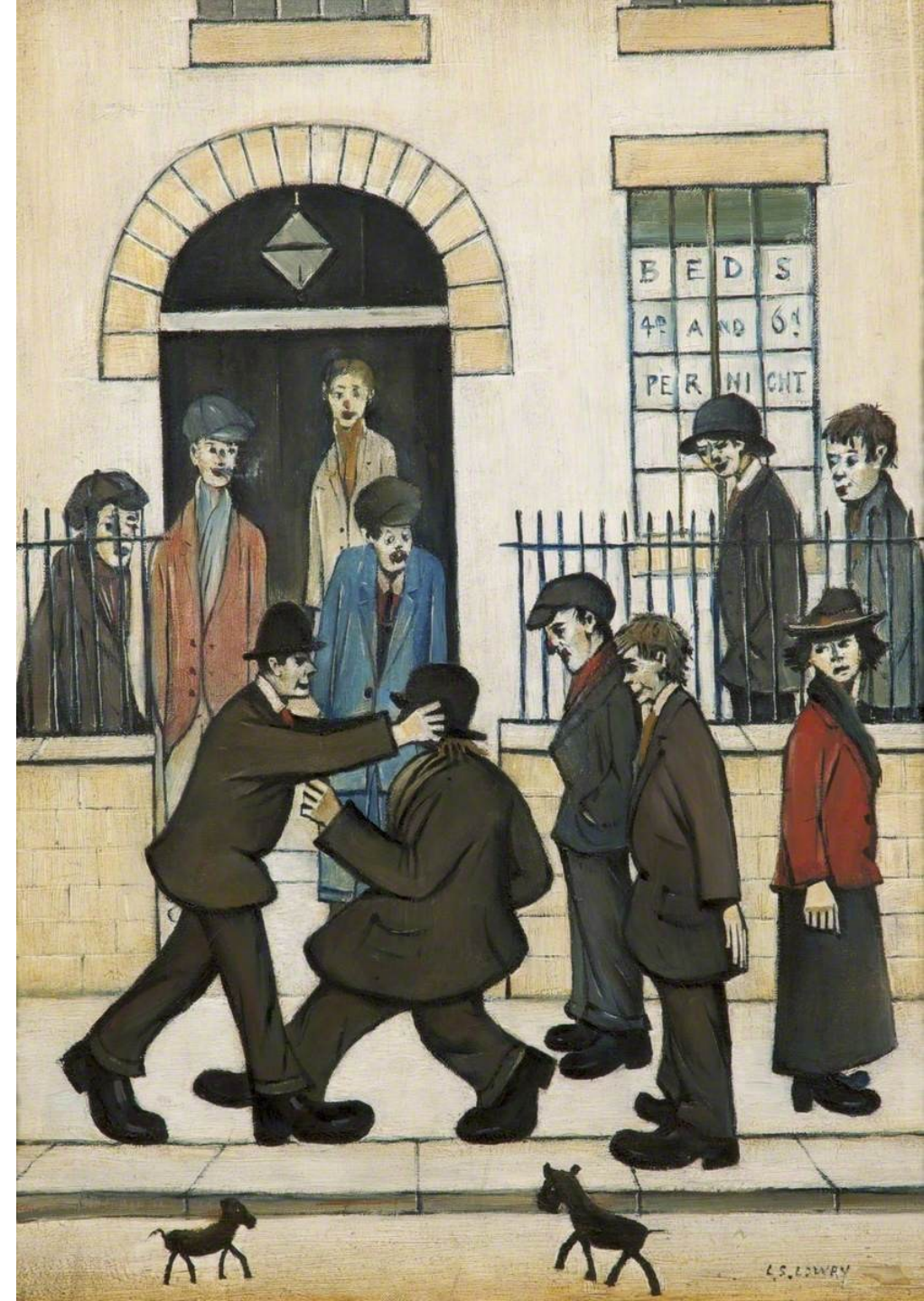


2. Battery

Battery

'Intentional unlawful touching'

- A. Touching
- B. Intention
- C. Directness
- D. No lawful excuse



A. Touching

- ❑ ‘The least touching of another’s person wilfully ... is a battery; for the law cannot draw the line between different degrees of violence and therefore totally prohibits the first and lowest stage of it.’ (Blackstone)
- ❑ ‘The least touching of another ... is a battery’ (*Cole v Turner* (1704), Holt CJ)
- ❑ The right to bodily integrity is “the first and most important of the interests protected by the law of tort” (*Parkinson v St. James NHS Trust* [2001] EWCA 530, Hale LJ)

B. Intention

- ❑ “It is the act and not the injury which must be intentional.”
(*Wilson v Pringle* [1987] CA)
- ❑ Recklessness will suffice
 - *Breslin v McKevitt* – D planted a bomb, which exploded hours later. D did not intend to intend to harm Cs specifically. However, D was still liable in battery.
- ❑ Transferred intent will suffice
 - *Livingstone v Ministry of Defence* – D, a soldier, fired into a crowd of rioters, aiming at X. The bullet hit another rioter, C. D was held liable in battery.
- ❑ Omissions can suffice
 - *Fagan v Met Police Commissioner* – D accidentally drove onto C’s foot. He then refused to move the car. This was a battery. (N.b. criminal case, but applicable in civil too.)

C. Directness

- “...if I throw a log of timber into the highway ... and another man tumbles over it and is hurt, an action on the case only lies, it being a consequential damage; but if in throwing it I hit another man, he may bring trespass because it is an immediate wrong.’ (*Scott v Shepherd*, Blackstone J, p.526)
- A gap in time does not make it indirect
 - *DPP v K* – D put acid in a dryer. D still liable in battery to C who later used the dryer.
- The involvement of others does not make it indirect
 - *Scott v Shepherd* – Firework thrown by D. Then TPs threw it on, to protect themselves. It ended up hitting C. D still liable.

D. No lawful excuse



“[M]ost of the physical contacts of ordinary life are not actionable because they are impliedly consented to by all who move in society...nobody can complain of the jostling which is inevitable from his presence in, for example, a supermarket, an underground station or a busy street; nor can a person who attends a party complain if his hand is seized in friendship, or even if his back is (within reason) slapped... [those examples fall] within a general exception embracing all physical contact which is generally acceptable in the ordinary conduct of daily life.”

(*Collins v Wilcock* [1984] 3 All ER 374, Goff LJ, p.378)

D. No lawful excuse



Wilson v Pringle [1986] 2 All ER 440 – [NOT the law!]

Facts

- ❑ In the course of 'horseplay' D injured C, a schoolboy.

Held

- ❑ Battery required the application of force to be hostile, this was not.
- ❑ Hostility might be shown by evidence of 'ill will or malevolence' but could not be equated with such.

D. No lawful excuse



- “It has recently been said that the touching must be ‘hostile’ ... I respectfully doubt whether that is correct. A prank that gets out of hand, an over-friendly slap on the back, surgical treatment by a surgeon who mistakenly thinks that the patient has consented to it, all these things may transcend the bounds of lawfulness, without being characterised as hostile. Indeed, the suggested qualification is difficult to reconcile with the principle that any touching of another's body is, in the absence of lawful excuse, capable of amounting to a battery and a trespass.” (*Re F (Mental Patient Sterilisation)* [1990] 2 AC 1, Lord Goff, [73])
- Overruled *Wilson v Pringle*!



3. Assault

Assault

‘D intentionally creates a reasonable apprehension in C of C suffering an imminent battery without lawful excuse’

So it has very similar elements to battery:

➤ Directness and lawful excuse work the same as battery

BUT ...

➤ Intention works differently from battery

What is 'reasonable' apprehension?

Stephens v Myers (1830)

Facts

- ❑ At a meeting, D advanced towards C threatening violence.
- ❑ D was stopped by other members of the meeting.

Held

- ❑ D still liable for assault, even though he was stopped, because C reasonably anticipated he would be hit.

What is 'reasonable' apprehension?

Thomas v National Union of Mineworkers [1986] Ch 20

Facts

- ❑ Miners being bussed into a plant to break a strike were transported on a reinforced bus through crowds of angry colleagues making threats.

Held

- ❑ No assault given no actual means of getting to the claimants

What is 'reasonable' apprehension?

Mbasogo v Logo Ltd [2006] EWCA Civ 1370

Facts

- ❑ C was the President of Equatorial Guinea, who alleged Ds assaulted him by trying, and failing, to carry out a coup.
- ❑ Ds were a group of (incompetent!) mercenaries.
- ❑ All Ds managed to do, was to land an 'advance group' of 20 mercenaries in Malabo (the capital) to gain intelligence and to prepare and participate in the attack.
- ❑ Before the mercenaries had time to do anything else, the attack was thwarted and they were arrested.

What is 'reasonable' apprehension?

Mbasogo v Logo Ltd [2006] EWCA Civ 1370

“there is no suggestion that the advance group in Malabo was armed, still less that it had the capacity to carry out an immediate attack. There is no allegation that the ... claimant or his family were in the line of any immediate attack.

Although it is alleged that there was an absence of army presence on the island where Malabo is situated ... there is no suggestion that the advance group, at large in Malabo, had the means to carry out the threat alleged.” [78]

What is 'reasonable' apprehension?

Mbasogo v Logo Ltd [2006] EWCA Civ 1370

“there is a further objection to the allegation. It was beyond controversy that an allegation of the tort of assault requires an allegation of an overt act causing another to apprehend the infliction of immediate violence. No overt act of such a nature is alleged. All that is alleged is that there was an advance group on Bioko, the island where Malabo is situated, and a large number of mercenaries in Zimbabwe preparing to load arms en route for Malabo. Neither constitute, in our view, an overt act causing the apprehension of immediate violence.” [80]

What is 'reasonable' apprehension?

R v Ireland [1998] AC 147

Facts

- Ds were criminally prosecuted for making silent phone calls to one or a number of young women, who suffered psychiatric illness as a result.

Held

- Mere words (or indeed silence) could amount to an assault.
- Whether D's words/silence had amounted to a reasonable apprehension of C suffering immediate battery would depend on the precise circumstances.

What is 'reasonable' apprehension?

R v Ireland [1998] AC 147

“[W]hereas for him merely to remain silent with them in the same room, where they could see him and assess his demeanour, would have been unlikely to give rise to any feelings of apprehension on their part, his silence when using the telephone in calls made to them repeatedly was an act of an entirely different character. He was using his silence as a means of conveying a message to his victims. This was that he knew who and where they were, and that his purpose in making contact with them was as malicious as it was deliberate.”

(Lord Hope, p.166)

Reasonable apprehension: conditional threats

- ❑ Conditional threats are *not* assault if dependent on D's own conduct, but *are* assault if dependent on another's conduct (including C's).
- ❑ *Tuberville v Savage* (1669): D put his hand on his sword and said to C, 'If it were not assize time, I would not take such language from you'. This was not assault.
- ❑ *Read v Coker* (1853): D told C that he would break their back if they did not leave. C did leave. Despite the threat being conditional, this was still an assault.

Intention

- ❑ Same as battery: 'it is the act and not the injury which must be intentional'
- ❑ Not the same as battery:
 - Recklessness will not suffice
 - Transferred intent will not suffice

Intention

Bici v Ministry of Defence [2004] EWHC 786 (QB)

Facts

- ❑ C had been travelling in a car when the Ds, who were soldiers, shot and killed two of the car's other occupants.
- ❑ Ds were not aiming at C, but rather at the other people in the car.

Held

- ❑ Ds not liable in assault to C, because they were not aiming at C.

Intention

Bici v Ministry of Defence [2004] EWHC 786 (QB)

“In my judgment the claim for assault cannot succeed. There is no basis for any finding that the soldiers intended personally to put [C] in fear of imminent violence. Indeed, there was no evidence that they intended to put anyone at all in fear. The fact that it may have been the consequence of their actions, even a foreseeable consequence, is not enough to fix them with liability in trespass.” [70]

Intention

Bici v Ministry of Defence [2004] EWHC 786 (QB)

“to establish liability under this tort it would not be enough to show that their conduct had been reckless ... Rather it would have to be shown that the soldiers must subjectively have appreciated that by their conduct the claimants would be put in fear of the immediate application of a battery, and they must have been indifferent as to this possibility. There is no evidence that it crossed their minds at all.” [78]

Intention

Bici v Ministry of Defence [2004] EWHC 786 (QB)

“I am far from satisfied that the doctrine of transferred malice would apply to an assault in the same way as it applies to a battery. ... This extension of the principle would considerably widen the scope of what is essentially a tort of intention and nudge it ever closer to the tort of negligence, without any obvious purpose or justification.” [80]